

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William MacLure	Team: Squad #06	CCRB Case #: 201801602	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 02/25/2018 2:34 AM	Location of Incident: Hoe Avenue and Westchester Avenue	18 Mo. SOL 8/25/2019	Precinct: 41		
Date/Time CV Reported Tue, 02/27/2018 11:08 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/27/2018 11:08 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eric Mcdevitt	14271	961933	041 PCT
2. SGT Avlon Beazer	01298	929696	041 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ariel Perez	21839	962679	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eric Mcdevitt	Abuse: Police Officer Eric Mcdevitt seized § 87(2)(b) s vehicle.	A . Exonerated
B . SGT Avlon Beazer	Abuse: Sergeant Avlon Beazer seized § 87(2)(b) s vehicle.	B . Exonerated
C . POM Eric Mcdevitt	Abuse: Police Officer Eric Mcdevitt seized § 87(2)(b) s property.	C . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On February 27, 2018, § 87(2)(b) filed this complaint with the CCRB over the phone, on behalf of his grandmother, § 87(2)(b) and his friend, § 87(2)(b).

On February 25, 2018, at approximately 2:34 a.m., in the vicinity of Hoe Avenue and Westchester Avenue, in the Bronx, § 87(2)(b) was arrested by PO Eric McDevitt and PO Ariel Perez, of the 41st Precinct, for criminal possession of a controlled substance. Sgt. Avlon Beazer responded and instructed PO McDevitt to remove § 87(2)(b) vehicle, which § 87(2)(b) was driving, to the stationhouse, with § 87(2)(b) dog, § 87(2)(b) inside (**Allegations A and B: Abuse of Authority, exonerated**). At the 41st Precinct stationhouse, § 87(2)(b) escaped, was struck by a vehicle, and died. Sgt. Beazer threw § 87(2)(b) remains into a dumpster and did not return them to § 87(2)(b) (**Allegation C: Abuse of Authority, substantiated**) § 87(4-b), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

There was no video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Eric McDevitt seized § 87(2)(b) vehicle.
Allegation (B) Abuse of Authority: Sergeant Avlon Beazer seized § 87(2)(b) vehicle.

§ 87(2)(b) was interviewed at her home, located at § 87(2)(b), in the Bronx, on March 26, 2018 (Board Review 01). § 87(2)(b) was not present during this incident.

§ 87(2)(b) was uncooperative with the investigation and did not provide a statement regarding this incident.

PO McDevitt was interviewed at the CCRB on June 5, 2018 (Board Review 02). PO McDevitt and PO Perez observed § 87(2)(b) double parked in the vicinity of Hoe Avenue and Westchester Avenue, in the Bronx, and decided to perform a vehicle stop. As PO McDevitt and PO Perez approached § 87(2)(b)'s vehicle from behind, PO McDevitt observed § 87(2)(b) slumped over the steering wheel and a dog, identified via investigation as § 87(2)(b) moving around in the front seat. PO McDevitt and PO Perez woke § 87(2)(b) up and observed narcotics on his lap. PO McDevitt could not remember exactly what he saw or what the narcotics were. PO McDevitt and PO Perez requested the patrol supervisor, Sgt. Beazer, to respond to the location and verify the arrest, which he did. After placing § 87(2)(b) under arrest, Sgt. Beazer instructed PO McDevitt to remove § 87(2)(b)'s vehicle from the scene to the stationhouse. PO McDevitt did not know when the decision was made to remove the vehicle and Sgt. Beazer did not provide him an explanation as to why the vehicle should be removed to the stationhouse instead of being left at the location. PO McDevitt did not look to see if there were any parking spots in the area and had no knowledge of § 87(2)(b) stating the vehicle was not his or that he wanted someone to come and take the vehicle. Sgt. Beazer did not provide PO McDevitt with any instruction regarding § 87(2)(b) while they were at the location. PO McDevitt did not recall if § 87(2)(b) ever informed officers who was § 87(2)(b) owner. PO McDevitt drove the vehicle back to the 41st Precinct stationhouse, with § 87(2)(b) inside.

Sgt. Beazer was interviewed at the CCRB on July 10, 2018 (Board Review 03). When questioned if § 87(2)(b) appeared intoxicated, Sgt. Beazer responded that § 87(2)(b) appeared to be “on something.” § 87(2)(b) appeared disshelved, his response was very slow, and he was not certain of where he was. PO Perez and PO McDevitt removed § 87(2)(b) from his vehicle and placed him under arrest. Within a few minutes of arriving on the scene, Sgt. Beazer made the decision to remove the vehicle to the stationhouse. PO McDevitt drove § 87(2)(b)'s vehicle back to the 41st Precinct stationhouse with § 87(2)(b) inside the vehicle. The vehicle was removed to the stationhouse, and not left on scene, because the officers could not leave the vehicle unattended. In these situations, the vehicle is either vouchered for safekeeping until it can be returned to the rightful owner, or the owner can have someone sign for the vehicle and pick it up at the stationhouse. Sgt. Beazer was not certain whether § 87(2)(b) said he could have someone retrieve the vehicle. Sgt. Beazer stated that there is no general procedure of what to do when someone is arrested with an animal. He explained that if the animal is not vicious, the officers can take the dog back to the stationhouse. If the individual can arrange for someone to pick up the dog, the dog can then be placed in a cage at the stationhouse. Sgt. Beazer was not aware of § 87(2)(b) making any statements that someone can pick up § 87(2)(b). § 87(2)(b) was not vicious and was sitting in the § 87(2)(b)'s vehicle the whole time.

PO Perez was interviewed at the CCRB on May 30, 2018 (Board Review 11). PO Perez's statement was consistent with PO McDevitt's and Sgt. Beazer's statements.

§ 87(2)(a) 160.50

When Necessary, officers may safeguard vehicles in police custody at the stationhouse Patrol Guide Procedure 218-12, “Safeguarding Vehicles in Police Custody” (Board Review 05).

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation (C) Abuse of Authority: Police Officer Eric McDevitt seized § 87(2)(b) property.

§ 87(2)(b) stated (Board Review 01) that, on or about February 25, 2018, she received a call from § 87(2)(b) who was crying and informed her that officers took § 87(2)(b) § 87(2)(b) son, § 87(2)(b) went to the 41st Precinct stationhouse and learned that § 87(2)(b) was dead and that officers had buried him.

PO McDevitt stated (Board Review 02) that once he reached the stationhouse, he went inside to get a dog cage. When he returned to the vehicle, he attempted to put § 87(2)(b) in the cage when he escaped. PO McDevitt chased § 87(2)(b) on foot around the stationhouse parking lot, and then onto Bruckner Boulevard, going northbound in the southbound lane. PO McDevitt continued to chase § 87(2)(b) until he lost sight of him in the vicinity of Longwood Avenue and Fox Street. PO McDevitt drove by himself to look for § 87(2)(b) and found that § 87(2)(b) had been struck by a vehicle in front of 788 Fox Street, in the Bronx. No one was on scene at the time. PO McDevitt called Sgt. Beazer who responded to the scene. PO McDevitt took photos of § 87(2)(b) body and removed the collar. Sgt. Beazer instructed PO McDevitt to prepare a police accident report (PAR) and a complaint report regarding § 87(2)(b) being struck by a vehicle that left the scene. PO McDevitt took

§ 87(2)(b) remains and disposed of them in a dumpster, the location of which he could not remember. PO McDevitt did not know if he received instructions of what to do with § 87(2)(b) remains, or if he did this without instruction. PBA Attorney Kate Conlon interjected and stated, “You deferred to whatever the sergeant said, is that correct?” PO McDevitt responded that he deferred to the sergeant for “dealing with the dog.” When asked if Sgt. Beazer instructed him to put § 87(2)(b) remains into a dumpster, PO McDevitt did not remember exactly what Sgt. Beazer said. PO McDevitt was not aware of any procedure for returning the remains of an animal to the owner of the animal. PO McDevitt did not speak to § 87(2)(b) again and did not inform § 87(2)(b) of what happened to § 87(2)(b).

Sgt. Beazer (Board Review 03) was informed by the desk officer that § 87(2)(b) got away and that PO McDevitt was looking for him. PO McDevitt later contacted Sgt. Beazer and informed him that § 87(2)(b) was located a couple of blocks away from the 41st Precinct Stationhouse. Sgt. Beazer went to the location, where PO McDevitt informed Sgt. Beazer that § 87(2)(b) had been struck by a vehicle. PO McDevitt stated that he was attempting to put § 87(2)(b) into the cage when it got away. Sgt. Beazer looked up the street and saw § 87(2)(b) body, which appeared to be dead, lying on the street. Sgt. Beazer instructed PO McDevitt to prepare an accident report for § 87(2)(b) noting that it was struck by an unknown vehicle. Sgt. Beazer left the location, while § 87(2)(b) was still in the street. Sgt. Beazer explained that the procedure of disposing of a dead animal is to notify the Department of Sanitation. Sgt. Beazer never provided PO McDevitt with any instructions of what to do with § 87(2)(b) remains. Sgt. Beazer did not know what PO McDevitt did with § 87(2)(b) body. Sgt. Beazer was not aware of any way that a § 87(2)(b) could keep § 87(2)(b) remains. PO McDevitt told Sgt. Beazer that he placed § 87(2)(b) in a bag, but did not tell Sgt. Beazer what he did with the bag. Sgt. Beazer stated that it was possible that PO McDevitt informed him that he the bag into the dumpster. Sgt. Beazer never instructed PO McDevitt to put § 87(2)(b) body into the dumpster. Sgt. Beazer was not aware of if PO McDevitt called the Department of Sanitation.

The Property Voucher (Board Review 14) generated by PO McDevitt for the dog collar did not mention the dog.

The Police Accident Report (Board Review 15) generated by PO McDevitt noted that the dog was struck by a vehicle which left the scene. Photos were attached of the dog’s deceased corpse.

The Complaint Report prepared (Board Review 06) noted that the dog was found dead by NYPD in the street.

When non-contraband property is removed from the person or any possession of any individual and taken into police custody, a property clerk invoice should be prepared and a copy should be provided to the person, Patrol Guide Procedure 218-30, “Invoicing Property Taken from a Person’s Possession” (Board Review 16).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **substantiated**.

§ 87(4-b) § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)

Civilian and Officer CCRB Histories

- There was one prior CCRB complaint filed by an individual named § 87(2)(b) § 87(2)(g)
- This was § 87(2)(b) first complaint at the CCRB (Board Review 08).
- This was § 87(2)(b) s first complaint at the CCRB (Board Review 09).
- This was the first complaint filed against PO McDevitt.
- Sgt. Beazer has six allegations stemming from four complaints at the CCRB over his 16 year tenure with the NYPD. None of the allegations were substantiated § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation because an arrest was made and no DAT was issued.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date